

Berkeley's Civic Engagement Agenda: what it means for UpSight

UpSight internal · Evaluation memo · 2026-10-08 · Source: *The Civic Engagement Agenda for California's Next Governor* (UC Berkeley Possibility Lab, Sept 2026, 36 pp.), plus the public records cited at the end.

Verdict. Worth a four-week experiment on public data with a kill date. Not worth building a government sales motion around. The document validates UpSight's thesis almost word for word, but the people who wrote it are asking the state to fund *their* function, not shopping for a vendor.

1. What the document is

The authors matter more than the 20 actions. Amy Lerman runs the Possibility Lab. Jesse Melgar is VP of Government Affairs at The California Endowment and was a senior advisor to Governor Newsom. Lindsay Maple came from the State Auditor's office. This is a politically wired funding proposal.

Actions 6, 7, 11 and 17 together ask for a California Civic Health Institute "modeled on the original National Institutes of Health" with a five-year budget line that would run the grants, the annual survey, the knowledge commons and the fellowship the Lab already operates. Nobody is volunteering: the Lab is bidding to become state infrastructure, and the Innovation Challenge (action 7) is the grant pipe that would pay pilots and tool-builders.

Timeline. The governor is elected 3 November 2026 and sworn in January 2027. The "first 100 days" end in mid-April 2027. Any Institute money is FY 2027-28 at the earliest. Nothing in our 2026-27 revenue plan can depend on this.

2. Why "open source", and who gets paid

Action 10 asks the state to "support the development of open-source tools for civic engagement" and to assess "responsible use of Generative AI tools". Three reasons it is worded that way:

- The agenda cites Taiwan's deliberative technology, which means Pol.is, the open-source tool the Lab itself used at its Catalyst Convenings. It is a reference point, not a procurement rule.
- "Pilot and evaluate" is academic language. They want to study tools, and you cannot publish an evaluation of a black box.
- An institute "modeled on NIH" cannot be seen to lock the state into one vendor.

Who is paid today, from the Office of Data and Innovation's own 2025 legislative report on Engaged California: Ethelo (deliberation platform) about \$20k spent and \$115k encumbered; Carnegie Endowment \$106k; Nava Technologies \$677k spent and \$4M encumbered across several projects. The state buys software and consultants at normal prices.

Our line: do not open-source the product. If it comes up, offer an open "receipts" export format and a published method. That satisfies the evaluation need without giving the code away.

3. Does it justify UpSight, or compete with it?

It justifies us in three places:

- The agenda’s own principles: engagement should have “follow-through and accountability to the input and perspectives shared by participants”, and “information gathered from communities is widely shared and consistently utilized”. That is traceability.
- Its diagnosis: California’s engagement work “has not been well documented or evaluated”.
- Carnegie’s independent review of Engaged California (Nov 2025) asks for receipts by name: “Participants need to see how their input has been used; otherwise, trust and future participation will erode.”

The real incumbent is not the Lab. It is ODI’s in-house analytics team, which synthesized the LA-fires input with BERTopic, Snowflake embeddings and Claude 3.5 Sonnet. The Lab’s researchers also do analysis themselves and will treat “we’ll analyze it for you” as their job. The risk is not being out-competed; it is being studied instead of bought. The fix is a free demo on public data, then a priced pilot on theirs.

4. Can we get the source data?

Not gatekeeping, just academic practice. Survey topline are published (through CalMatters posts the Lab pays for). Raw voter data would need a data-use agreement.

The data worth asking for is the Catalyst Convenings input: Pol.is exports, Mentimeter polls and group notes from three of nine regional sessions, with nothing published and the other six pushed to 2027-28. They are behind on synthesis. Do not ask first; show up with a result.

The state has already published the best demo set. Engaged California’s LA-fires agenda-setting dataset is public domain under ca.gov’s conditions of use, with no personal information.

Engaged California, LA fires agenda-setting dataset	
Comments	1,289 (52,481 words)
Topics assigned by the state	11
AI-generated “conversation groups”	38
Comments left in “Other” or with no group	381 (29.6%)
Policy actions the state issued from this input	19
Comment-to-action map published	None

Source: engaged.ca.gov/public/data/wildfire_agenda_setting_comments.csv, downloaded and profiled 2026-10-08. The state’s own page documents the method (BERTopic, Snowflake Cortex embeddings, labels drafted by Claude 3.5 Sonnet and edited by staff).

5. Government money: what exists now versus what is promised

Source	What it is	Status	Fit for UpSight
Strategic Growth Council RFQ (posted 28 Apr 2026)	Certified small business contractor for nine Catalyst Convenings, 2027 to spring 2028; scope includes "synthesis of meeting notes" and "final reporting"	Open; budget not stated	Subcontractor or tool to the winner; most of the scope is event logistics. DGS small-business certification is free and worth having regardless
Office of Data and Innovation	Runs Engaged California; a second engagement with state workers is planned	Funded now	The one buyer already paying for this exact workflow
Cities and counties	Every housing element and general plan must document public input; consultancies (CivicMakers, MIG, PlaceWorks) produce the appendix	Continuous	Same deliverable as our consultant beachhead with the names changed
Possibility Lab	Irvine Foundation gift (\$600k) and Carnegie funding for the IMPACT model and convenings	Funded now	Partner and reference, not a buyer
Civic Health Institute / Innovation Challenge	Actions 6, 7 and 17 of the agenda	Not yet proposed to anyone who can fund it; FY 2027-28 at the earliest	Nothing to plan on

Sources: ODI Legislative Report 2025; SGC announcement of 28 Apr 2026; Possibility Lab site; CivicMakers' 167-page engagement appendix for Santa Cruz County's housing element (themes as bullets, 54 quotes, no systematic trace from comment to decision).

6. The demo that makes it obvious

Redo the state's own analysis with receipts, on the product, and publish one page: **"What 1,289 fire survivors said, what the state did with it, every claim linked."**

1. Themes with every comment attached; the unthemed 30% re-grouped.
2. A comment-to-policy-action map: which of the 19 actions each theme supports, and which themes got no action.
3. The assistant answering questions over the set with citations, live, through the MCP server.

It uses their data, their outcome and their reviewer's exact critique. No slides.

7. Plan, time box, kill criteria

- **Weeks 1-2:** build the page on the public dataset.
- **Weeks 3-4:** outreach with the page in hand: the Lab (Lerman, Maple), ODI's Engaged California team, three California engagement consultancies with an appendix due.
- **Decide by 15 November 2026.** Success is one real, unpublished dataset handed over, or one paid pilot quoted. A meeting, a compliment or an invitation to present does not count.
- **Kill:** no dataset and no quote by the date. Close the question; keep the page as a reference asset.
- We have no contacts at Berkeley or the state in the CRM, so finding a warm path is the first task.

This is consistent with the June 2026 market thesis: civic is strategically aligned but a poor first wedge “unless there is a strong distribution partner or anchor customer”. The experiment tests that condition and nothing wider.

8. Guardrails

- Non-partisan wording only; no implied affiliation with UC Berkeley, ODI or any campaign.
- Have the data-handling answer ready before outreach: where resident data lives, retention, who can see it.
- Price the pilot after the free demo. Do not let a research lab run an unpaid evaluation for a year.
- Do not open-source the product (see section 2).

Sources

- The Civic Engagement Agenda for California's Next Governor, Possibility Lab, Sept 2026 (PDF and web version): possibilitylab.berkeley.edu/Civic%20Engagement%20Agenda.html
- Engaged California, agenda-setting data and method: engaged.ca.gov/lafires-recovery/agenda-setting-data-insights/
- Carnegie Endowment, lessons from the Engaged California LA wildfires pilot, Nov 2025: carnegieendowment.org/posts/2025/11/engaged-california-la-wildfires-lessons
- California Office of Data and Innovation, Legislative Report 2025: innovation.ca.gov/reports/legislative-report-2025
- Strategic Growth Council, contractor announcement, 28 Apr 2026: sgc.ca.gov/?p=11435
- Possibility Lab, regional Catalyst Convenings: possibilitylab.berkeley.edu/?p=2625
- Santa Cruz County Housing Element, Appendix HE-C Public Engagement Results (CivicMakers, 2023): cdi.santacruzcountycalifornia.gov
- State of California conditions of use (public-domain statement): ca.gov/use/